SQUAMISH-LILLOOET REGIONAL DISTRICT
BYLAW NO. 1293-2013

A bylaw of the Squamish-Lillooet Regional District to regulate and prohibit the use of firearms within Electoral Area A.

WHEREAS the Regional Board of the Squamish-Lillooet Regional District deems it expedient and necessary to regulate and prohibit the use of firearms in Electoral Area A of the Squamish-Lillooet Regional District;

NOW THEREFORE, the Board of the Squamish-Lillooet Regional District, in open meeting assembled, enacts as follows:

SECTION 1 APPLICATION

1.1 This bylaw applies to those regions in Electoral Area A of the Squamish-Lillooet Regional District as shown on Schedules V, W, X, Y, and Z, which are attached to and form part of this bylaw.

1.2 For certainty, this bylaw applies to every person whether or not that person holds a hunting licence under provincial law.

SECTION 2 DEFINITIONS

2.1 For the purpose of this bylaw, the following words or expressions are defined:

"Board" means the Board of the Squamish-Lillooet Regional District.

"Chief Provincial Firearms Officer" shall have the same meaning as in the *Firearms Act* (British Columbia) Chapter 145 R.S.B.C and Amendments.

"Firearm" or "Firearms" shall have the same meaning as in the *Firearms Act* (British Columbia) Chapter 145 R.S.B.C and Amendments.

"Permit" shall have the same meaning as in the *Firearms Act* (British Columbia) Chapter 145 R.S.B.C and Amendments.

"Regional District" means the Squamish-Lillooet Regional District.

SECTION 3 PROHIBITIONS

3.1 No person may:
(a) discharge a firearm within the limits of the areas defined in Schedule V, W, X, Y, and Z attached to and forming part of this bylaw
(b) without limiting the foregoing, discharge a firearm on or across a highway or within 100 meters of any school building, school yard, public park, playground, church, cemetery, workshop, place of business, dwelling house, or other place where persons may be assembled or engage in work of any kind.

SECTION 4 EXEMPTIONS

4.1 Section 3 of this bylaw does not apply to a person:

(a) who is:

(i) a peace officer,

(ii) a conservation officer, as defined in section 1(1) of the *Environmental Management Act,* and appointed under the *Firearm Act* (British Columbia) or the *Wildlife Act* (British Columbia),

(iii) a fisheries officer appointed or designated under the *Fisheries Act* (Canada),

(iv) an officer of the Parks Branch of the Ministry of Environment (British Columbia),

(v) in possession of a firearm for use in connection with his or her employment by an armoured car service as defined in the *Private Investigators and Security Agencies Act* (British Columbia), or

(vi) otherwise authorized by any provincial or federal enactment to possess and to discharge a firearm in the performance of his or her duties,

when engaged in his or her official duties;

(b) who is authorized by a permit issued by the Chief Provincial Firearms Officer to discharge a firearm in an indoor shooting range under the *Firearms Act* (British Columbia); or

(c) who is on a shooting range approved by the Chief Provincial Firearms Officer.

(d) who is a bonafide farmer or their agent acting on behalf of the farmer in rural zoned properties when engaged in a farm operation and the firearm is discharged for the purpose of protecting his or her crops or livestock from birds or animals, or for the purpose of slaughtering livestock on his or her own property, subject to the provisions of the *Wildlife Act* (British Columbia), *Farm Protection Act* (British Columbia), and the *Livestock Act* (British Columbia).

(e) who is a licenced guide or outfitter operating with their provincially approved tenure area and offering limited target practice activities to their registered guests. Limited target practice activities do not include a shooting range as outlined in Section 4.1(b) or (c).

(f) who is a licenced hunter engaged in authorized hunting activities in accordance with Provincial and Federal regulations.

(g) Sections4.1(e) and (f) do not exempt a person from adhering to all relevant Provincial and Federal regulations, and provincially designated no shooting areas, and no hunting areas."

SECTION 5 PERMISSIONS

5.1 The Regional Board may by resolution, on receipt of a written application from an approved club or organization, grant permission to the applicant for the operation of rifle range or trap club, or both, within a closed area, provided that permission is first received from the local detachment of the Royal Canadian Mounted Police, and from the officer named in Section 4.1(c) of this bylaw, as required.

SECTION 6 INSPECTIONS & ENFORCEMENT

6.1 Bylaw enforcement officers and members of the Royal Canadian Mounted Police are hereby authorized to enter, at all reasonable times, on any property subject to this bylaw, to ascertain whether this bylaw is being observed.

SECTION 7 NO INTERFERENCE

7.1 No person shall obstruct or interfere with a bylaw enforcement officer in the performance of his or her duties under this bylaw.

SECTION 8 PENALTIES

8.1 Any person who violates any of the provisions of this bylaw or who suffers or permits any act or thing to be done in contravention of this bylaw, or who refuses, or omits or neglects to fulfill, observe, carry out or perform any duty or obligation imposed by this bylaw, is guilty of an offence and

(a) pursuant to the *Local Government Act* or the *Offence Act* or both shall be liable on summary conviction to:

(i) a fine not exceeding two thousand dollars ($2,000.00), imprisonment of not more than 6 months, or both,
(ii) the costs of prosecution, and
(iii) any other penalty or remedy imposed or permissible pursuant to an enactment;

(b) the penalties and remedies imposed under subsection (a) shall be in addition to and not in substitution for any other penalty or remedy imposed by or permissible under this bylaw or any other enactment; and

(c) each day that a violation is caused or allowed to continue constitutes a separate offence under this bylaw.

8.2 Every day during which there is an infraction of this bylaw shall constitute a separate offence.

SECTION 9 SEVERABILITY

9.1 If any section, subsection, sentence, clause, or phrase in this bylaw is for any reason held to be invalid by a decision of any court of competent jurisdiction, the decision shall not affect the validity of the remaining portions of the bylaw.

SECTION 10 REPEAL

10.1 Squamish-Lillooet Regional District Firearms Bylaw No. 91, 1976, is hereby repealed and replaced by this bylaw.

SECTION 11 CITATION

11.1 This bylaw may be cited for all purposes as the ‘Squamish-Lillooet Regional District Electoral Area A Firearms Bylaw No. 1293-2013.’

READ A FIRST TIME this 22nd day of JULY, 2013.

READ A SECOND TIME this 22nd day of JULY, 2013.

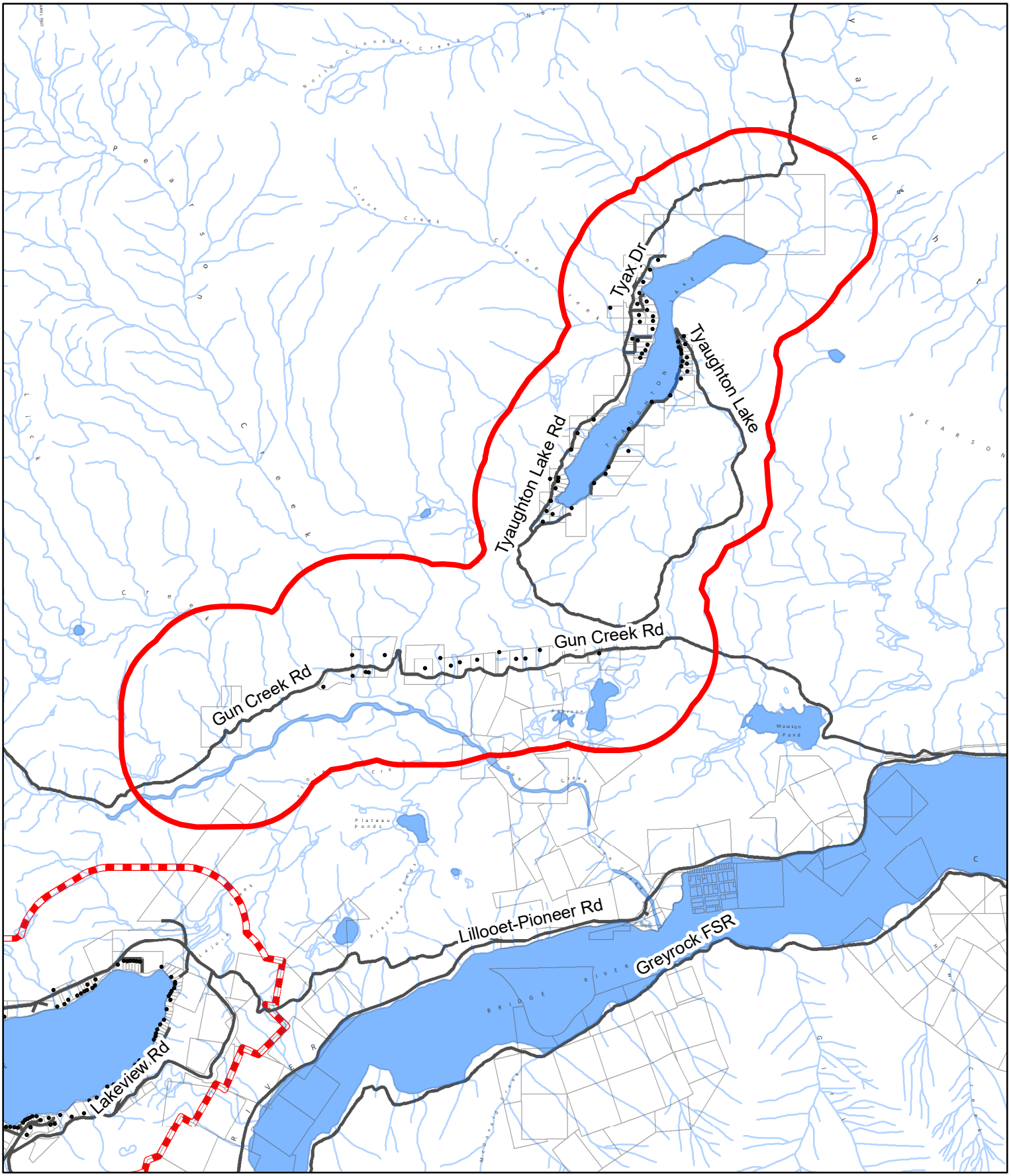
READ A THIRD TIME this 22nd day of JULY, 2013.

ADOPTED this 22nd day of JULY, 2013.

_____
Patricia Heintzman
Chair

_____
Peter DeJong
Secretary

BYALW NO.	**SUMMARY OF BYLAW AMENDMENTS**	**DATE OF ADOPTION**
1317-2014	An amendment to the firearms Bylaw that imposes penalties in Area A	January 27, 2014
1490-2016	An amendment to the firearms Bylaw that prohibits the use of firearms within the Electoral Area A	October 26, 2016



Projection: NAD 83 UTM Zone 10N

1:50,000

0 0.5 1 2 Kilometers

N

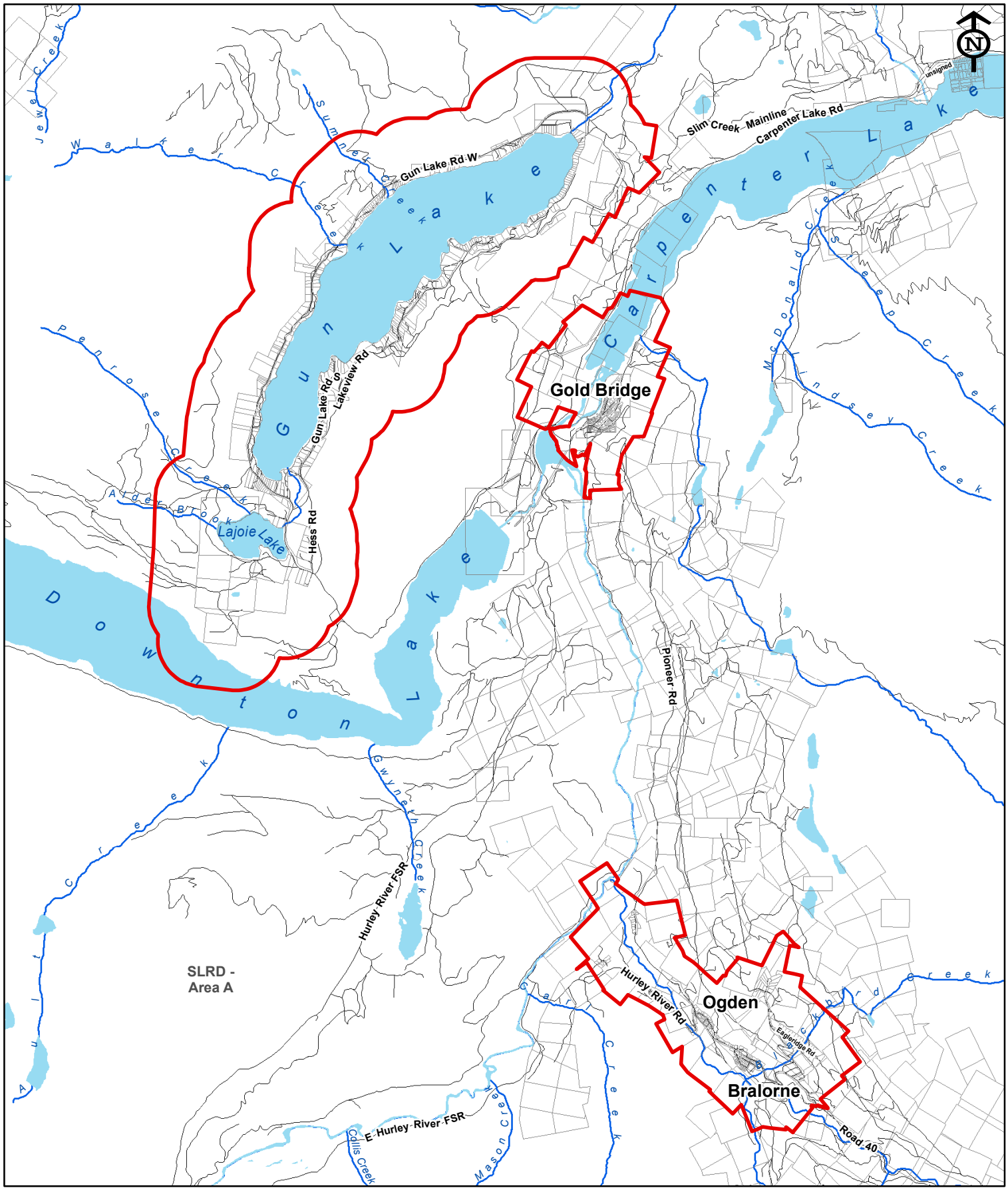
SQUAMISH - LILLOOET REGIONAL DISTRICT

Squamish-Lillooet Regional District
1350 Aster Street
Pemberton, BC V0N 2L0

Legend

- No Shooting Areas
- Civic Addresses
- Parcels
- Firearms Bylaw 1293
- Stream
- River
- Lakes
- Roads

Schedule V
No Shooting Areas
Bylaw No. 1293-2013
SLRD Electoral Area A

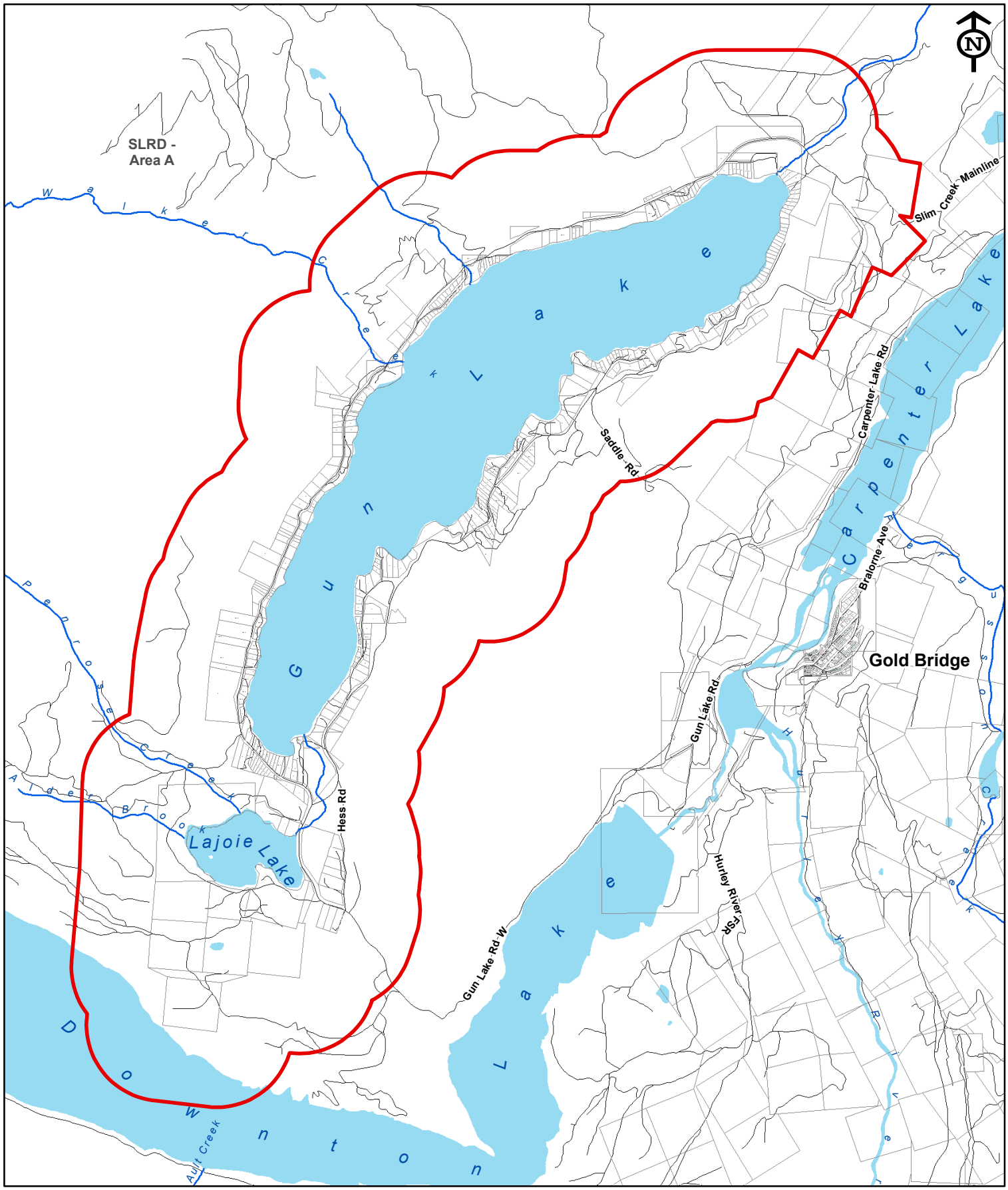


No Shooting Area

SCHEDULE W
FIREARMS BYLAW NO. 1293
SQUAMISH - LILLOOET REGIONAL DISTRICT

Plot Date: 07/03/2013

0 1 2 km

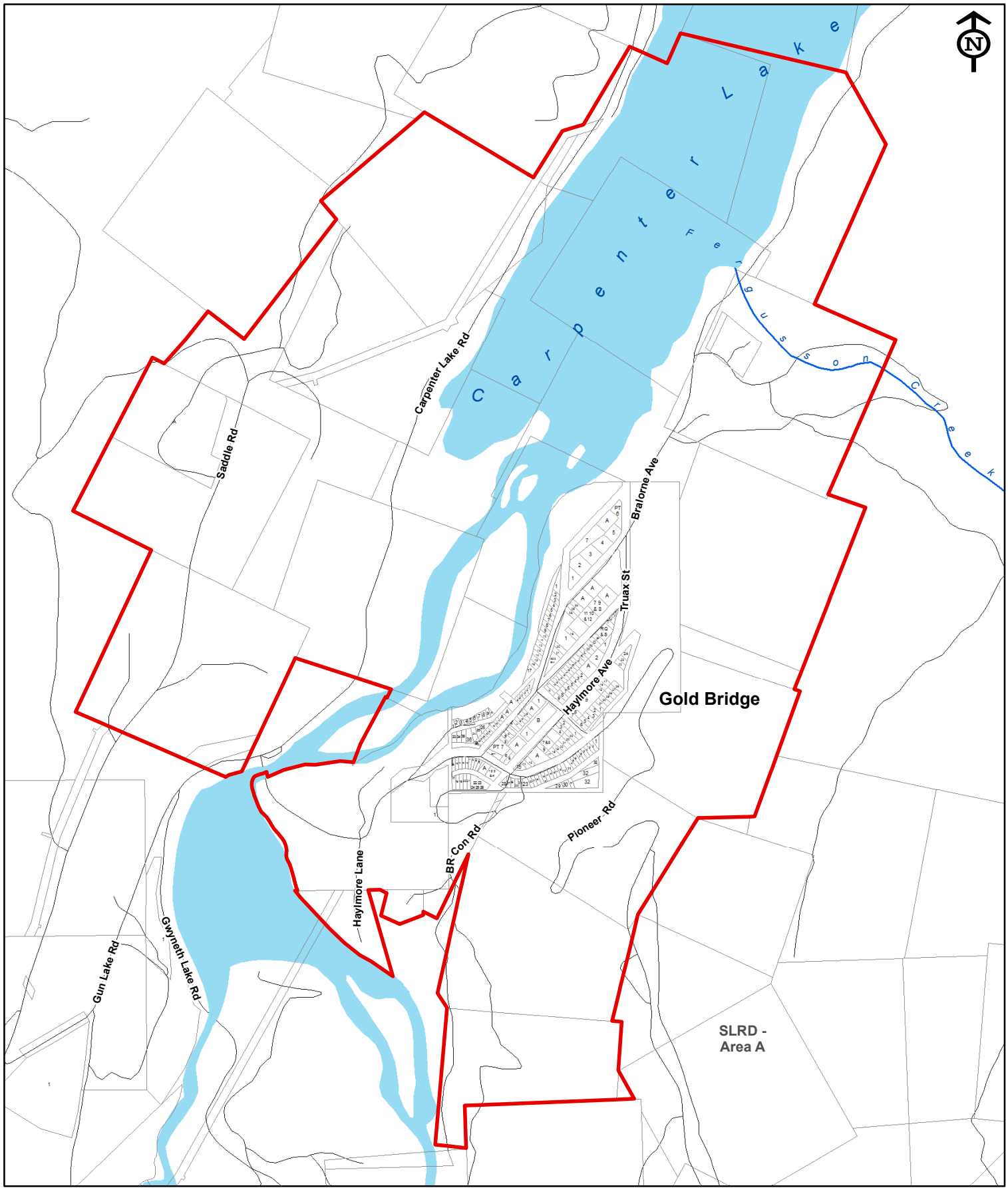


No Shooting Area

SCHEDULE X (GUN LAKE)
FIREARMS BYLAW NO. 1293
SQUAMISH - LILLOOET REGIONAL DISTRICT

0 0.5 1 km

Plot Date: 07/02/2013

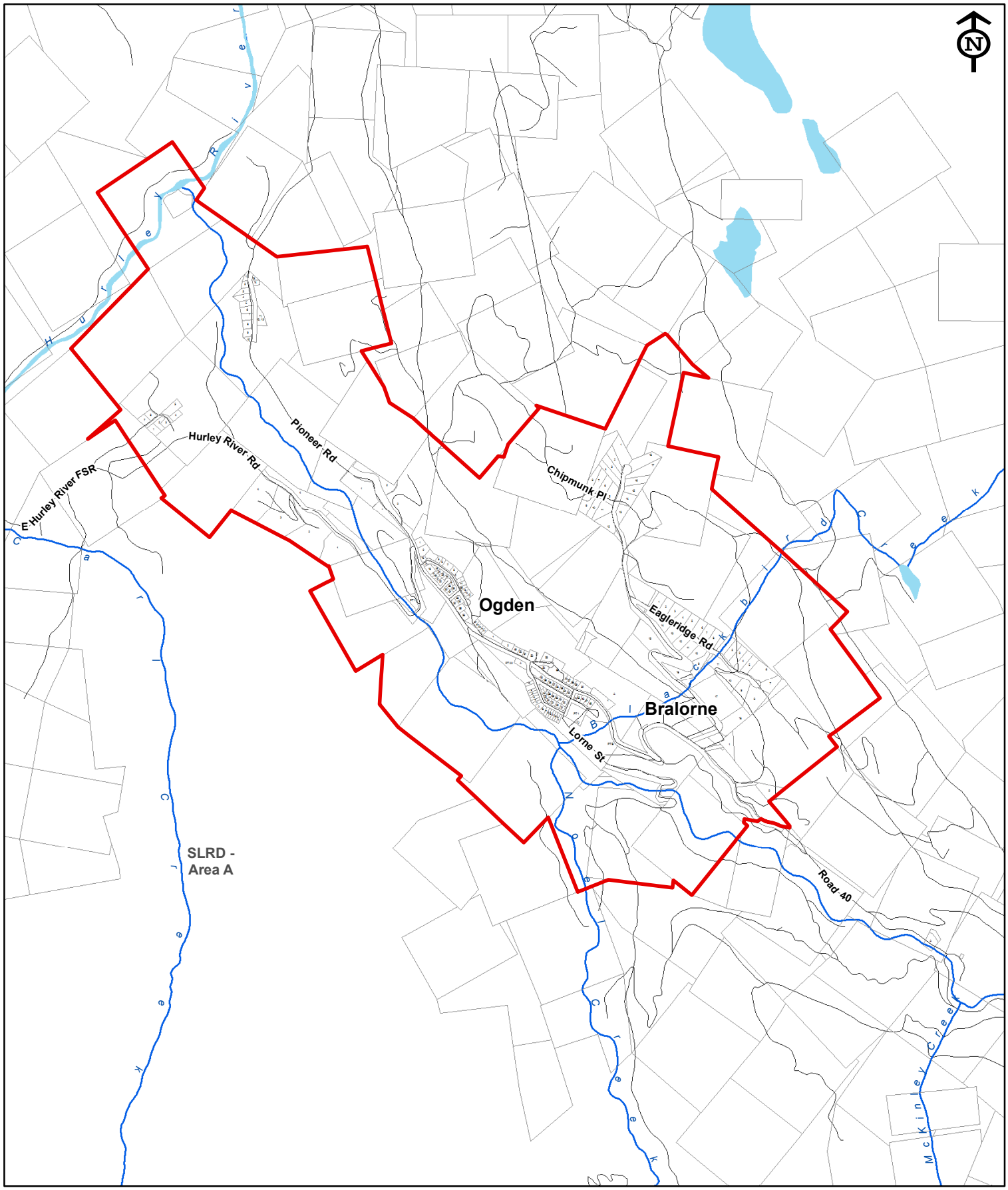


No Shooting Area

SCHEDULE Y (GOLD BRIDGE)
FIREARMS BYLAW NO. 1293
SQUAMISH - LILLOOET REGIONAL DISTRICT

Plot Date: 07/03/2013

0 0.25 0.5 km



No Shooting Area

SCHEDULE Z (OGDEN-BRALORNE)
FIREARMS BYLAW NO. 1293
SQUAMISH - LILLOOET REGIONAL DISTRICT

Plot Date: 07/02/2013

0 0.5 1 km